

Open category

When I buy a drone to be operated in the open category or in standard scenario (STS) in the specific category, what should I do?

Answer

The operator is responsible for obtaining a reasonable confidence that the drone he/she is acquiring complies with requirements applicable to its C class 1 - 6 (ref: Annex of Delegated Regulation (EU) 2019/945).

In particular, the operator needs to ensure that:

- buying directly from outside the EU should be avoided as the UAS may not be intended for the EU market and may not comply with EU legislation.
- the drone bears the appropriate class label from 1 to 6 and it comes with a declaration of conformity showing compliance with the Drone Regulation (EU) 2019/945.
- when buying a second hand UAS, obtain reasonable confidence that the UAS has not been damaged or modified in a way that affect its initial compliance with the Drone Regulation (EU) 2019/945.
- the initial compliance of the UAS to the requirements of its C Class is maintained throughout its lifetime, in particular, that the UAS is not damaged or modified in a way that could affect it.

Last updated:

12/04/2022

Link:

<https://www.easa.europa.eu/en/faq/136359>

Understanding the ‘open’ category

How do I determine I fall under the ‘open’ category?

Answer

A drone can be operated in the “Open “category when it:

- bears one of the class identification labels 0, 1, 2, 3 or 4; or
- is privately built and its weight is less than 25 kg; or
- it is placed on the market before 31 December 2023 and bears no class identification label as mentioned above;
- will not be operated directly over people, unless it bears a class identification label or is lighter than 250 g. (Please refer to subcategories of operations: A1, A2 and A3 to find out where you can fly with your drone);
- will be maintained in visual line of sight (VLOS) or the remote pilot will be assisted by a UA observer;

- is flown at a height of no more than 120 metres;
- will not carry any dangerous goods and will not drop any material.

Regulatory reference: Article 4 and article 20 of EU Regulation 2019/947; Annex part A and Article 5(1) of EU Regulation 2019/947, Part1 to 5 Annex of EU regulation 2019/945.

Last updated:

01/02/2024

Link:

<https://www.easa.europa.eu/en/faq/116450>

I fall under the 'open' category, how do I determine which subcategory I can fly under?

Answer

The Subcategory is determined either by:

- the label showing the class identification label (0, 1, 2, 3 or 4), affixed to your drone; or
- the weight of your drone, for a privately built drone or for a drone without class identification label (called legacy drones);

Caveat: in order to facilitate the transition, drones without class identification labels may fly until 1st of January 2023 according to the requirements defined in article 22 of EU regulation 2019/947 (please refer to FAQ on [flying without CE Class Markings](#) for additional information).

Applying the instructions above, please refer to the table below to determine the subcategory you must fly under. For instance, drones with CE class 2 marks canmarks can be only be flown under subcategory A2 (close to people) or A3 (far from people).

'Open' - Subcategory	class identification label type of drone
A1 Urban areas but not over crowds or outside of urban areas	class identification label 0, 1
	Privately built drone with MTOM < 250 g and Speed < 19 m/s
	Drone without class identification label with MTOM < 250 g incl. fuel and payload. As of 1 January 2023
A2 Urban areas keeping at least 5 m (or 30 m depending on the features of your drone) from people, or outside of urban areas	2
A3 Outside of urban areas	class identification label 2, 3, 4
	Privately built drone with MTOM < 25 kg Speed < 19 m/s
	Drone without class identification label with MTOM < 25 kg incl. fuel and payload. As of 1 January 2023

Please consider that your state may publish geographical zones that may restrict the use of your drone.

Last updated:

10/10/2020

Link:<https://www.easa.europa.eu/en/faq/116451>**I bought a DJI Mini (weight 249g) how can I operate it?****Answer**

DJI Mini is a drone with a weight of 249g, has a camera and it is not a toy (meaning that it does not comply with the toy directive). Therefore, the following actions have to be taken in order to comply with Regulation (EU) 2019/947:

- As a drone operator/owner, you must register yourself with the [National Aviation Authority \(NAA\) of the Member State you reside in](#).
- Once registered, you receive a 'drone operator registration number' that needs to be displayed with a sticker on all the drones you own, including those privately built. You must also upload it into the 'Drone's remote identification system', If the drone has this function;
- When operating the drone, always comply with the [A1 sub-category requirements](#).

A remote pilot training certificate is not needed to operate a drone of this kind, however is highly recommended to conduct the A1/A3 online training. Moreover, most of EASA Member States mandate a third party insurance. Please consult the national regulation for further information about the insurance for drones. For further inquiries related to the operations in the A1 sub-category and in the Open category in general, please consult [our related FAQs](#)

Last updated:

27/07/2022

Link:<https://www.easa.europa.eu/en/faq/136863>**Requirements under the 'open' category****What are the requirements under the subcategories of the 'open' category?****Answer**

According to the class identification label of the drone or the weight, in the case of privately built drones, they can be operated in different conditions as described below:

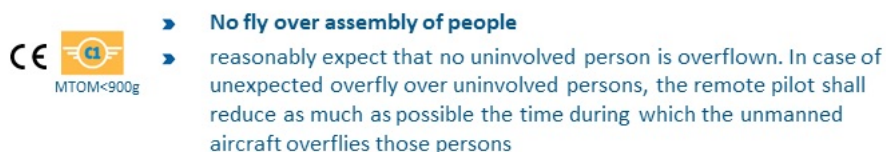
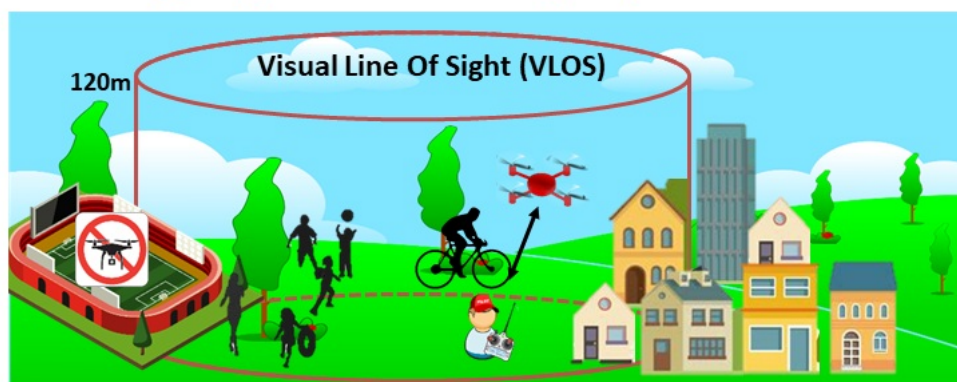
Drones bearing a CE class 0 mark or that are privately built and weigh up to 250 g can fly in subcategory A1, which means almost everywhere, except over assemblies of people, or areas that the state has forbidden by imposing a restriction on the flight of drones (please consult the website of your National Aviation Authority. See <https://www.easa.europa.eu/domains/civil-drones/naa>).

Open category - Subcategory A1



Drones bearing a class identification label 1 can also be operated in subcategory A1 with the difference that you are required to minimise flying over uninvolved people.

Open category - Subcategory A1

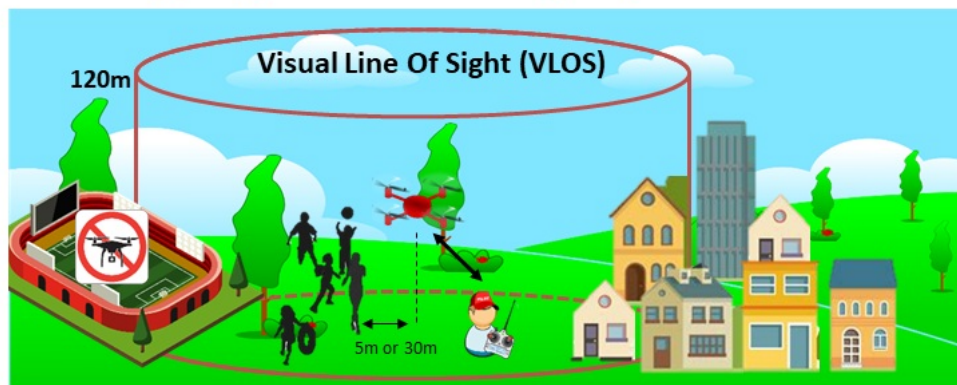


Drones bearing a class identification label 2 can be operated in subcategory A2, which means in urban environments, however, you are required to keep a safe distance from any uninvolved people. As a rule, this minimum distance should be equal to the height at which the drone is flying (e.g. if you are flying at a height of 30 m, make sure that the closest uninvolved person is at least 30 m from the position where the drone would vertically fall in the event of an incident). In any case, this distance must never be less than 5 m. In addition, you can also fly in the conditions defined for subcategory A3. Finally, you must avoid flying in areas that the state has forbidden by imposing a restriction on the flight of drones.

(Please consult the website of your National Aviation Authority for additional information.)

See <https://www.easa.europa.eu/domains/civil-drones/naa>.

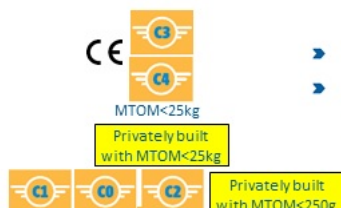
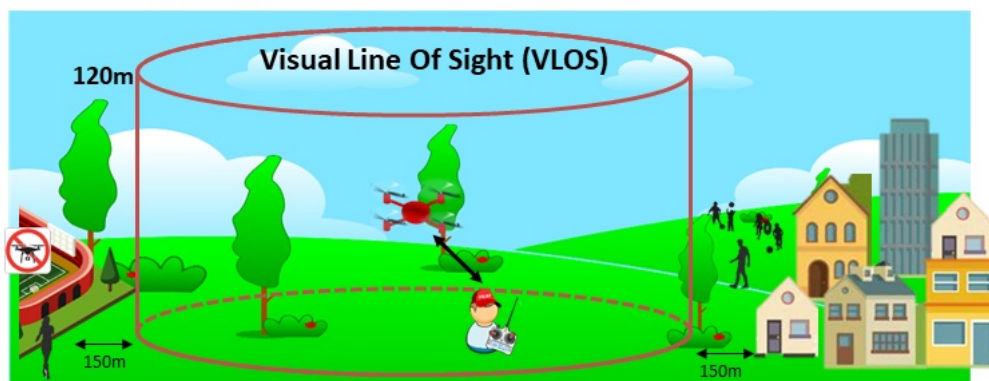
Open category - Subcategory A2



- **No fly over uninvolved people**
- UAS at a horizontal distance of at least 30 metres from uninvolved persons, or up to a of 5 metres when low speed mode function is activated

Drones bearing a class identification label 3 or 4 , or that are privately built and weigh up to 25 kg, can be operated in subcategory A3. That means that they can never be operated in urban environments that you need to keep the drone at least 150 m from residential, commercial or industrial areas, and to only operate in areas where no uninvolved people are present in the range where the drone can be operated. In any case, you must avoid flying in areas that the state has forbidden by imposing a restriction on the flight of drones (please consult the website of your National Aviation Authority for additional information, see <https://www.easa.europa.eu/domains/civil-drones/naa>)

Open category - Subcategory A3



- **No fly over uninvolved people**
- conducted in an area where the remote pilot reasonably expects that no uninvolved person will be endangered within the range where the unmanned aircraft is flown during the entire time of the UAS operation

For the full image of requirements and limitations applicable to different classes of drones and conducted operations, please refer to the tables below:

Table 1 — 'Open' category, applicable until 31 December 2023

WHAT TYPE OF DRONE CAN I FLY?					
Applicable until 01 of January 2014					
Operation		Drone Operator / pilot			
Max Take off mass	Subcategory	Operational restrictions	Drone Operator registration?	Remote pilot qualifications	Remote pilot minimum age
<250g 	A1 Not over assemblies of people (can also fly in subcategory A3)	Operational restrictions on the drone's use apply (follow the QR code below)	Yes No if toy or not fitted with camera/sensor 	Read user's manual	No minimum age (certain conditions apply)
<500g 			Yes	Check out the QR code below for the necessary qualifications to fly these drones	16
<2kg 	A2 Fly close to people (can also fly in subcategory A3)				
<25kg 	A3 Fly far from people				
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Table 2 — 'Open' category, applicable from 1 January 2024

WHAT TYPE OF DRONE CAN I FLY?

Operation			Drone Operator / pilot							
C-Class	Max Take off mass	Subcategory	Operational restrictions	Drone Operator registration?	Remote pilot qualifications	Remote pilot minimum age				
Privately build	<250g 	A1 Not over assemblies of people (can also fly in subcategory A3)	Operational restrictions on the drone's use apply (follow the QR code below)	Yes No if toy or not fitted with camera/sensor 	Read user's manual	No minimum age (certain conditions apply)				
legacy < 250g										
C0										
C1	<500g 			Yes	Check out the QR code below for the necessary qualifications to fly these drones	16				
C2	<2kg 	A2 Fly close to people (can also fly in subcategory A3)								
C3	<25kg 	A3 Fly far from people								
C4										
Privately build										
Legacy drones (art 20)										



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Last updated:

23/11/2023

Link:

<https://www.easa.europa.eu/en/faq/116452>

Training requirements in the 'open' category

Who issues the remote pilot competency certificate for the 'open' category and how long is it valid for?

Answer

For the 'open' category or standard scenarios, the National Aviation Authority is responsible for issuing the certificates. A certificate for Remote Pilot competency **is valid for 5 years**. If the revalidation is conducted before the certificate expires, the remote pilot may attend a seminar provided by the National Aviation Authority or by an entity recognised by it, otherwise competencies need to be re-demonstrated.

Regulatory reference: DRONE.OPEN.070 (1) of EU regulation 2019/947.

Last updated:

10/10/2020

Link:

Will the competency certificate for the 'open' category be recognised throughout Europe?

Answer

Yes, training conducted in one EASA member state will be recognised in all others.

Last updated:

13/10/2020

Link:

<https://www.easa.europa.eu/en/faq/116459>

Which training I need to fly my drone in the open category?

Answer

The type of training required depends on the type of drone you use.

A transitional period **until December 31, 2023** applies, and each EASA Member State may define the appropriate remote pilot training requirements according to **the following table**:

WHAT TYPE OF DRONE CAN I FLY?					
Applicable until 01 of January 2014					
Operation		Drone Operator / pilot			
Max Take off mass	Subcategory	Operational restrictions	Drone Operator registration?	Remote pilot qualifications	Remote pilot minimum age
<250g 	A1 Not over assemblies of people (can also fly in subcategory A3)	Operational restrictions on the drone's use apply (follow the QR code below)	Yes No if toy or not fitted with camera/sensor 	Read user's manual	No minimum age (certain conditions apply)
<500g 			Yes	Check out the QR code below for the necessary qualifications to fly these drones	16
<2kg 	A2 Fly close to people (can also fly in subcategory A3)				
<25kg 	A3 Fly far from people				



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For more details go to
<https://www.easa.europa.eu/domains/civil-drones-rpas>



Remote pilot training as from 1 January 2024

The training requirements applicable as from January 1, 2024 are described below. However, most of the EASA Member States already offer the training listed below. In this way, you can already today receive a certificate according to the EU regulation. So, if you receive from an NAA of an EASA Member State one of the certificate of training with the EASA logo as shown below, you may already use it to operate your drone in the 'open' category in all EASA Member States. The training and exams can be conducted in an EASA Member State of your choice.

WHAT TYPE OF DRONE CAN I FLY?

Operation			Drone Operator / pilot							
C-Class	Max Take off mass	Subcategory	Operational restrictions	Drone Operator registration?	Remote pilot qualifications	Remote pilot minimum age				
Privately build	<250g 	A1 Not over assemblies of people (can also fly in subcategory A3)	Operational restrictions on the drone's use apply (follow the QR code below)	Yes No if toy or not fitted with camera/sensor 	Read user's manual	No minimum age (certain conditions apply)				
legacy < 250g										
C0										
C1	<900g 	A2 Fly close to people (can also fly in subcategory A3)		Yes	Check out the QR code below for the necessary qualifications to fly these drones	16				
C2	<4kg 									
C3	A3 Fly far from people									
C4										
Privately build										
Legacy drones (art 20)	<25kg 									



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For more details go to
<https://www.easa.europa.eu/domains/civil-drones-rpas>



Please pay attention: we are made aware that some illegal websites are selling fake certificates of training. Please trust only the providers of training and exams that are listed in a NAA website!

How to operate drones in the open category from 01/01/2024 (These provisions already apply to drones with C-class marks)

- Privately built and drones placed on the market before 01/01/2024 (under 250 gramm)

Subcategory	A1 (can also fly in subcategory A3)
Operational restrictions	- May fly over uninvolved people (should be avoided when possible) - No flight over assemblies of people
Drone operator registration	No, unless camera / sensor on board and a drone is not a toy
Remote pilot competence	No training required
Remote pilot minimum age	No minimum age

- C0 (under 250 gramm)

Subcategory	A1 (can also fly in subcategory A3)
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Operational restrictions	◦ No flight over assemblies of people; ◦ Maintain flight altitude below 120m above ground level.
Drone operator registration	No, unless camera / sensor on board and a drone is not a toy
Remote pilot competence	Read carefully the user manual
Remote pilot minimum age	16*, no minimum age if drone is a toy

• [C1 \(under 900 gramm\)](#)

Subcategory	A1 (can also fly in subcategory A3)
Operational restrictions	◦ No flight expected over uninvolved people (if it happens, overflight should be minimised); ◦ No flight over assemblies of people; ◦ Maintain flight altitude below 120m above ground level.
Drone operator registration	Yes
Remote pilot competence	◦ Read carefully the user manual ◦ Obtain a 'Proof of completion for online training' for A1/A3 'open' subcategory by: ▪ Completing the online training ▪ Passing the online theoretical exam
Remote pilot minimum age	16*

• [C2 \(under 4 kg\)](#)

Subcategory	A2 (can also fly in subcategory A3)
Operational restrictions	◦ Must not overfly uninvolved people; ◦ Maintain a horizontal distance of 30 m from uninvolved people (can be reduced to 5 m if the low-speed function is activated); ◦ Maintain flight altitude below 120m above ground level.
Drone operator registration	Yes
Remote pilot competence	◦ Read carefully the user manual ◦ Obtain a 'Remote pilot certificate of competency' for A2 'open' subcategory by: ▪ Having a 'Proof of completion for online training' for A1/A3 'open' subcategory ▪ Conducting and declare a practical self- training ▪ Passing an additional theoretical exam at the NAA or proctored online
Remote pilot minimum age	16*

• [C3 \(under 25 kg\)](#)

Subcategory	A3
Operational restrictions	◦ Must not overfly uninvolved people; ◦ Maintain a horizontal distance of 150 m from uninvolved people and urban areas; ◦ Maintain flight altitude below 120m above ground level.

Drone operator registration	Yes
Remote pilot competence	◦ Read carefully the user manual ◦ Obtain a 'Proof of completion for online training' for A1/A3 'open' subcategory by: ▪ Completing the online training ▪ Passing the online theoretical exam
Remote pilot minimum age	16*

• [C4 \(under 25 kg\)](#)

Subcategory	A3
Operational restrictions	◦ Must not overfly uninvolved people; ◦ Maintain a horizontal distance of 150 m from uninvolved people and urban areas; ◦ Maintain flight altitude below 120m above ground level.
Drone operator registration	Yes
Remote pilot competence	◦ Read carefully the user manual ◦ Obtain a 'Proof of completion for online training' for A1/A3 'open' subcategory by: ▪ Completing the online training ▪ Passing the online theoretical exam
Remote pilot minimum age	16*

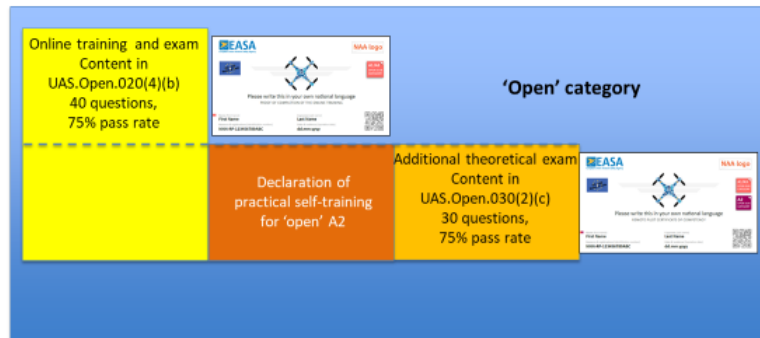
• [Privately built and drones placed on the market before 01/01/2024 \(under 25 kg\)](#)

Subcategory	A3
Operational restrictions	◦ Must not overfly uninvolved people; ◦ Maintain a horizontal distance of 150 m from uninvolved people and urban areas; ◦ Maintain flight altitude below 120m above ground level.
Drone operator registration	Yes
Remote pilot competence	◦ Read carefully the user manual ◦ Obtain a 'Proof of completion for online training' for A1/A3 'open' subcategory by: ▪ Completing the online training ▪ Passing the online theoretical exam
Remote pilot minimum age	16*

Note that an NAA may designate an entity that may conduct the online training and provide the online exam or the exam for the A2 subcategory. Please refer to the NAA's website for additional information.

Summary

'Open' category: remote pilot competency



Last updated:

21/02/2024

Link:

<https://www.easa.europa.eu/en/faq/116457>

Operational authorisation requirements 'open' category

Do I need to obtain an authorisation before flying my drone? ('open' category)

Answer

No prior authorisation is needed for operations in the **'open' category**.

Last updated:

13/10/2020

Link:

<https://www.easa.europa.eu/en/faq/116460>

Responsibilities for drone operators and remote pilots in the 'open' category

What are my responsibilities as a drone operator in the 'open' category?

Answer

As a drone operator flying in the 'open' category, you **must**:

- ensure that the drone displays the drone operator registration number (e.g. with a sticker) and the same number is uploaded into the remote identification;
- develop operational procedures (written procedures are required when the drone operator employs more than one remote pilot, otherwise it is enough that the remote pilot follows the procedures defined by the manufacturer in the user's manual);

- ensure that there is no radio interference that may affect the command and control link of the drone;
- designate a remote pilot for each operation; it is important that it is clear who is the person responsible for each flight;
- ensure that the remote pilot and the personnel supporting the operation of the drone are familiar with the user's manual and with the drone operator's procedures, have appropriate competency, and are provided with the relevant information concerning any geographical zones published by the MS;
- ensure that the maps in the geo-awareness system of the drone are up to date, unless you are flying in a geographical zone where geo-awareness is not required;
- ensure that, unless you are using a privately built drone, it has a declaration in conformity to the CE class mark and its class label (0 to 4) is affixed to the aircraft; and
- ensure that the persons involved in the operation of the drone is aware of the risks involved in operations under subcategories A2 and A3.

Regulatory reference: UAS.OPEN.050 under Annex 1 and art.19 (2)

Last updated:

14/10/2020

Link:

<https://www.easa.europa.eu/en/faq/116467>

What are my responsibilities as a remote pilot in the 'open' category?

Answer

As a remote pilot you **must**:

Before the flight:

- complete the training and examination required for the type of operation you will be involved in;
- have relevant up-to-date information about any geographical zones published by the National Aviation Authority;
- check for obstacles and the presence of people not involved in the operation of the drone (unless operating in the A1 subcategory with a privately built drone or a drone with a CE class 0 mark);
- check that the drone is fit for flight and the operation it will undertake;
- check that the remote control works properly (if applicable); and
- ensure that the weight of the drone is within the limit of the category or subcategory of the intended operation.

During the flight in the 'open' category, you must:

- not operate the drone when you are unfit either due to the consumption of psychoactive/ hallucinogenic substances or alcohol, or unfit due to sickness;
- keep the drone at a distance such that you can clearly see it; you may use a UA observer to scan the airspace when you want to fly in first person view. UA observers must be located alongside you such that they can immediately communicate in case they see an obstacle and give you instructions such as to immediately land the drone.
- if you or the UA observer see a manned aircraft, give way to it, and make sure you are far away from it. If you have any doubt about the operation, you should land the drone immediately.

- comply with the limitation of the geographical zones;
- operate the drone according to the manufacturer's user manual;
- comply with the operator's procedure; and
- do not operate where an emergency response service is ongoing (e.g. in the case of an accident, keep away from that location since an emergency helicopter may be required to be used);

Regulatory reference: UAS.OPEN.060 under Annex part A EU regulation 2019/947.

Last updated:

13/10/2020

Link:

<https://www.easa.europa.eu/en/faq/116468>

When I buy a drone to be operated in the open category or in standard scenario (STS) in the specific category, what should I do?

Answer

The operator is responsible for obtaining a reasonable confidence that the drone he/she is acquiring complies with requirements applicable to its C class 1 - 6 (ref: Annex of Delegated Regulation (EU) 2019/945).

In particular, the operator needs to ensure that:

- buying directly from outside the EU should be avoided as the UAS may not be intended for the EU market and may not comply with EU legislation.
- the drone bears the appropriate class label from 1 to 6 and it comes with a declaration of conformity showing compliance with the Drone Regulation (EU) 2019/945.
- when buying a second hand UAS, obtain reasonable confidence that the UAS has not been damaged or modified in a way that affect its initial compliance with the Drone Regulation (EU) 2019/945.
- the initial compliance of the UAS to the requirements of its C Class is maintained throughout its lifetime, in particular that the UAS is not damaged or modified in a way that could affect it.

Last updated:

25/04/2022

Link:

<https://www.easa.europa.eu/en/faq/136384>

Drones without class identification label 'open' category

Under the 'open' category do I still need training, given that I was flying drones before the rules became applicable?

Answer

Any certificates of remote pilots' competency issued by national authorities will remain valid until 1 January

2022, after which your National Aviation Authority will have to convert your national certificate(s) to new one(s) that comply with this Regulation.

Whether or not you have to undergo more training after that date will depend on the conversion process that your National Aviation Authority decides to put in place.

As of 31 December 2020, if you do not have a national certificate for your remote pilot competency, you will have to undergo the required competency training as required for the 'open' category.

Regulatory reference: Article 21 and Annex part A (UAS.OPEN.020) and (UAS.OPEN.040) of EU regulation 2019/947.

Last updated:

14/10/2020

Link:

<https://www.easa.europa.eu/en/faq/116509>

I fall under the 'open' category will I be able to fly my old drone after 31 December 2020 ?

Answer

Yes, from 31 December 2020 to 1 January 2024, you may fly your drone without class Identification label in the 'open' category under the following conditions:

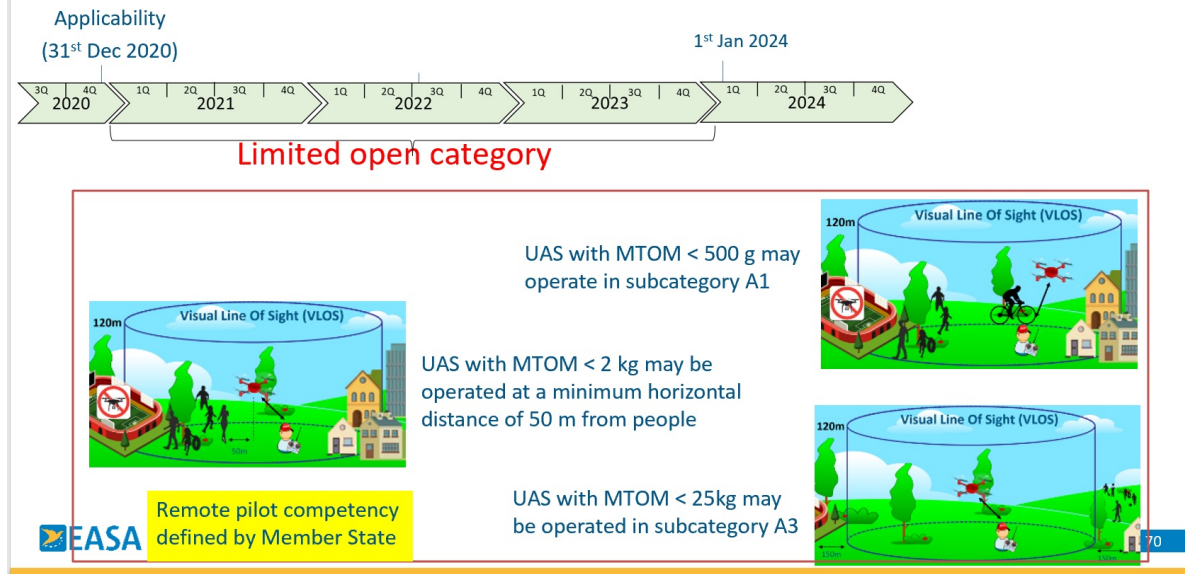
- drones with less than 500 g MTOM cannot fly over people, and pilot competency is determined by your National Aviation Authority;
- drones with less than 2 kg MTOM can fly 50 metres or more (horizontally) from people and the pilot must undergo training equivalent to subcategory A2 (see the FAQ section on training);
- drones with less than 25 kg MTOM, can fly in areas free from people, 150 metres or more away from properties, and the pilot must undergo training equivalent to subcategory A3 (see the FAQ section on training).

After 1 January 2024, you can still fly your drone without class identification labels, however, only under the following subcategories of operation, for which you have to fully comply with:

- Subcategory A1 when the drone's maximum take-off weight (MTOM) is less than 250 g; or
- Subcategory A3 when the drone's maximum take-off weight is less than 25 kg.

You **will not need to apply any retrofit/sticker** to the drone in subcategories A1 or A3.

Regulation 2019/947 – Timeline



Regulatory reference: Article 20 and Annex part A of EU regulation 2019/947 and EU regulation 2019/945.

Last updated:

18/03/2022

Link:

<https://www.easa.europa.eu/en/faq/116508>

Which are the maximum take-off mass requirements in the 'open' category for drones without class identification label?

Answer

As explained in the following article, [Drone Open Category - Applicable requirements to fly from the 1st of January 2024 | EASA](#) and according to the [EU Regulation 2019/947](#), from 1 January 2024, you can fly a drone without a class identification label if you operate in the open category in:

- **Subcategory A1:** if the drone has a maximum take-off mass of less than 250 g, including its payload;
- **Subcategory A3:** if the drone has a maximum take-off mass of less than 25 kg, including its fuel and payload.

Only for drones with a class mark, manufacturers have the responsibility for declaring the maximum take-off mass of the drone. This means that, when using a drone without a class identification label the maximum take-off mass is not available. In this case the remote pilot has the possibility to weight the drone before the flight and make sure it is within the above limits.

The information contained in this article is meant purely as a summary of the Drone Regulations. It has no legal effect and shall not be construed as the official guidance of the Agency in accordance with Article 76 of [Regulation \(EU\) 2018/1139](#). The Union's institutions and the Agency do not assume any liability for its contents. The authentic versions of the relevant acts, including their preambles, are those published in the Official Journal of the European Union and available in EUR-Lex.

Last updated:

30/10/2024

Link:<https://www.easa.europa.eu/en/faq/140559>

I am into drone racing and/or flying drones with goggles (FPV) 'open' category

As a drone racer, which category and subcategory of operation do I fall under?

Answer

Normally drone races are organised by clubs and associations. In such cases, they may have received operational authorisations from their National Aviation Authorities in accordance with Article 16 of Regulation (EU) 2019/947, which also covers the organisation of such events.

If, instead, you want to conduct a race that is not within a club or association and with no spectators (in this context meaning uninvolved persons, see the definition above) present, you will fall under the '**open**' **category** and you can operate under subcategory A3.

Last updated:

14/10/2020

Link:<https://www.easa.europa.eu/en/faq/116510>

Is flying with goggles (first person view) authorised in the 'open' category?

Answer

The Regulation allows you to fly without keeping direct eye contact with the drone, provided you have a person next to you, a UA observer, keeping direct visual contact with the drone, scanning the airspace to make sure that you do not endanger other parties (e.g. aircraft or buildings or persons). **The UA observer must be located alongside you so they can immediately communicate with you** in case they see an obstacle, and give you instructions, such as to immediately land the drone.

Regulatory reference: Article 4(d) of EU regulation 2019/947.

Last updated:

14/10/2020

Link:<https://www.easa.europa.eu/en/faq/116511>

Are spectators allowed in the 'open' category?

Answer

When operating in the 'open' category, **flying over uninvolved people is not allowed**, so there must not be any spectators. See also the explanation on uninvolved persons under ['understanding EU Regulations 2019/947 and 2019/945'](#).

Last updated:

14/10/2020

Link:

<https://www.easa.europa.eu/en/faq/116512>

Is beyond visual line of sight (BVLOS) operation possible for flying drones with goggles (first-person view (FPV)) operation?

Answer

NB This answer applies only to non-racing FPV operation.

One of the conditions to operate in the open category is for the remote pilot to keep the drone **invisual line of sight (VLOS)** at all times. There are only two exceptions where VLOS is not strictly applied:

- when using the follow-me mode with a drone with C0 or C1 label or below 250 g; and/or
- when operating in first person view (FPV) and using an **unmanned-aircraft observer** that is always looking at the drone.

It is important to note that the open category catalogues all lower-risk drone operations **without the need for prior authorisation**; this lighter provision is compensated by more restrictive conditions of operation.

FPV goggles by nature do not allow to have a wide field of view to see potential threats around the drone, so they do not enable VLOS. Hence, the requirement for an **unmanned-aircraft observer** for any FPV operation when operating in the open category. The **unmanned-aircraft observer** must look at the drone and be alongside the remote pilot so that the **unmanned-aircraft observer** can immediately inform the remote pilot in case of any threat around the drone.

With the above conditions, you are allowed to fly FPV in the open category. However, you need to be mindful of the risk to hit a person or other aircraft.

If you want to have a drone race in FPV, spectators are not allowed; please note that drones with a speed higher than 19 m/s are only allowed to operate in open subcategory A3 (far from people). Therefore, in case you want to have spectators, the FPV race should be conducted in the specific category (including standards scenarios). For more information, please refer to the following FAQ: [I am into drone racing and/or flying drones with goggles \(FPV\) 'open' category | EASA \(europa.eu\)](#).

For standard scenario (STS) 2, nothing prevents the remote pilot to fly in first person view when:

- an **airspace observer** scans the sky; and
- the remote pilots is assisted by an **unmanned-aircraft observer**.

The same person may be the **airspace observer** and the **unmanned-aircraft observer**, if that person complies with the requirements imposed for the two observers.

For STS 1, it is correct that at the moment, operating in FPV is not possible since the remote pilot is required to maintain VLOS.

Last updated:

25/06/2024

Link:

<https://www.easa.europa.eu/en/faq/140037>

I build my own drones (privately built) 'open' category

Does my drone fall under the 'open' category?

Answer

Yes, privately built drones can be used, and depending on their weight, operated in the 'open' category or the 'specific' category. You, as the drone operator, need to fulfil all the requirements of the Regulation, and in the 'open' category, you can only operate under subcategory:

- A1 when the drone's maximum take-off weight (MTOM) including its payload is less than 250 g and the maximum speed is less than 19 m/s; or in
- A3 when the drone's MTOM including its payload is less than 25 kg.

Regulatory reference: UAS.OPEN.020 (5) (a) and UASOPEAN.040 (4)(a) Annex part A of EU regulation 2019/947.

Last updated:

14/10/2020

Link:

<https://www.easa.europa.eu/en/faq/116513>

I plan to provide services (commercial and other) with drones 'open' category

How do I determine which category I can operate under, 'open' or 'specific'?

Answer

You can operate your services whether commercial or not, under the 'open' category, if you meet all the requirements defined for the 'open' category.

See Question on subcategory under "[understanding EU regulation 2019/947 and 2019/945](#)".

Regulatory reference: Article 4 of EU Regulation 2019/947; Annex part A and Article 5(1) of EU Regulation 2019/947.

Last updated:

14/10/2020

Link:<https://www.easa.europa.eu/en/faq/116514>**What is meant by the requirement for Operational procedures?****Answer**

The drone operator should develop procedures adapted to the type of operations and to the risks involved. Therefore, **written procedures should not be necessary if the drone operator is also the remote pilot, or employs just one remote pilot. In this case the remote pilot** may use the procedures defined by the manufacturer's manual.

If a drone operator employs more than one remote pilot, the drone operator should:

- (a) develop procedures for drone operations in order to coordinate the activities between its employees; and
- (b) establish and maintain a list of their personnel and their assigned duties.

Regulatory reference: UAS.OPEN.50 under annex part A 2019/947.

Last updated:

14/10/2020

Link:<https://www.easa.europa.eu/en/faq/116517>**I am a non-EU visitor / drone operator 'open' category**

I am a Non-EU resident visiting Europe and I plan to fly my drone in the 'open' category, do I need to register?

Answer

All drone operations conducted in the EASA Member States must comply with the Drone Regulation, no matter what the nationality of the operator or remote pilot is. Therefore, as a non-EU resident, you are also required to register with the National Aviation Authority of the first EU country where you intend to operate.

You will then be issued with a **'drone operator registration number'** that needs to be **displayed** with a sticker **on all the drones you own**. You **must also upload it into the 'remote identification system'** of your drone(s).

Once registered in the host country, the drone operator's registration **will be valid** across Europe and the operator will be required to follow all the provisions of the Drone Regulation.

If you intend to operate in the 'specific' category, you must submit a declaration for a standard scenario or apply for an operational authorisation to the National Aviation Authority of the EU Member State(s) where you registered.

If you want to conduct operations in a Member State different from the one in which you registered, you need

to follow the same procedure as all other national citizens of the Member State where you registered. Refer to question [‘I plan to provide services \(commercial and other\) with drone\(s\)’](#).

Regulatory reference: Art.41 (1) and (2) of EU regulation 2019/945.

Last updated:

14/10/2020

Link:

<https://www.easa.europa.eu/en/faq/116519>

As a non-EU resident, are my competencies for the 'open' category recognised in the EU?

Answer

Given that there is not yet any mutual recognition established between EASA and other countries, in the domain of drones, the training or qualification obtained in your country of residence will not be accepted in the EU. Therefore, you will have to undergo the required training before you can fly your drone. In the meantime, other nations may develop regulations that may be considered by the EU commission as equivalent to those in Europe. Information on future recognition will be published on the EU Commission website as soon as it is finalised.

Last updated:

14/10/2020

Link:

<https://www.easa.europa.eu/en/faq/116520>

Conduct an Operation in the open category in a state other than the one I am registered

Do I need to apply for an authorisation?

Answer

No you are not required to do anything different from what is required when flying in the state where you are registered. Make sure before starting the operation you check if the area is covered by a geographical zone published by the state.

Regulatory reference Article 4 of EU Regulation 2019/947

Last updated:

10/09/2021

Link:

<https://www.easa.europa.eu/en/faq/131130>